Mayor's Office of Legislative Affairs

Bill number: 251098

Resolution number: 251108

Introduced by: Gauthier

Cosponsor(s): Phillips, Thomas, Landau, Lozada, Brooks, O'Rourke, Ahmad

Assigned committee: Law and Government

Date introduced: 12/11/2025

Fiscal Note

Overview

This legislation would propose changes to the Philadelphia Home Rule Charter to establish the Office of the Youth Ombudsperson. The anticipated cost to the City is $2.9 million to $3.1 million over five years.

Legislative Summary

This legislation would add a question to the ballot for the May 19, 2026, election. Qualified electors in the election may answer Yes or No to the following question:

Shall the Philadelphia Home Rule Charter be amended to provide for the creation of the Office of the Youth Ombudsperson to improve the safety and quality of services for youth places in juvenile justice, child welfare, and behavioral health residential care facilities, and to authorize City Council to determine additional powers and duties of the Youth Ombudsperson as needed to carry out this mission?

Youth Ombudsperson

If enacted, the Mayor would be authorized to appoint the Youth Ombudsperson with the approval of a majority of all the members of Council. The Youth Ombudsperson would be required to have at least five years combined professional and lived experience in counseling, youth advocacy, investigation, litigation, or a related field.

Within five years prior to their appointment the Youth Ombudsperson may not have worked as an employee of any City agency or City related agency that is engaged in the operations or regulations of any City or city related agency run youth facility.

The Youth Ombudsperson shall be compensated at a rate of $150,000 annually, and paid in equal semi-monthly payments, unless otherwise ordered by City Council.

Annual Operating Budget

A minimum of $1,000,000 is to be allocated in every annual operating budget ordinance to fund this office. City Council would have the power to designate more funding if they deem necessary.

Mission

If enacted, the mission of the Office of the Youth Ombudsperson would be to promote the health, welfare, education, safety, well-being, and re-entry of youth placed in juvenile justice, child welfare, or behavioral health residential care facilities that are operated by, contract with, or operate under the regulatory authority of the City, its agencies, or any City-related agency.

Power and Duties

The Office of the Youth Ombudsperson would have the power and the duty to perform the following functions:

- Receive complaints for the purpose of improving the quality of care provided to youth in residential care facilities and refer or conduct investigations in such complaints in accordance with applicable federal, state, and City laws and regulations;
- Review the competence of the City's juvenile justice, child welfare, or behavioral health agencies and their providers in serving the needs of youth in residential care facilities;
- Review, audit, and provide recommendations regarding the conduct, policies and practices of entities providing services to youth in residential care facilities, including, but not limited to, in connection with annual facility evaluations, provider contract negotiations, and related contract actions;
- Monitor and review investigations and evaluations performed by, and investigatory protocols, reporting systems, emergency response procedures, and other policies and procedures used by, City and City-related agencies in connection with assessing the quality of care provided to youth in residential care facilities;
- Identify issues and trends regarding the quality of care provided to youth in residential placements, demographics, and demographic disparities;

- Provide advice and recommendations regarding how best to improve services and outcomes for individuals placed in youth residential care facilities;
- Access such documents and information as necessary to carry out its authorized functions in accordance with applicable federal, state, and City laws, and regulations, including education and court records with leave of court, as appropriate;
- Develop, publish and deliver information, materials and guidance to educate and engage youth, families, providers, courts and others about residential placement processes, available avenues for assistance, youth rights and protections, and other matters relevant to residential placements and the youth experience;
- Prepare an annual report on its activities, goals, and accomplishments during the previous fiscal year and file this report with the Chief Clerk of the Council before March 31 of each year; and
- Carry out such additional powers and duties as Council may, by ordinance, confer on the Office of the Youth Ombudsperson, consistent with the scheme of this Charter.

Power of Removal

If enacted, the Mayor would have the power to remove the Youth Ombudsperson only for cause, after written notice and opportunity to reply is given. The Mayor would be required to provide a written notice to the Youth Ombudsperson stating the reason(s) for removal and file a copy of said notice at the same time with the President of City Council and the Chief Clerk of City Council. The Youth Ombudsperson will have the opportunity to reply at a public hearing of the City Council Committee of the Whole at which the Mayor will also present and explain the reasons for removal. A vote of a majority of all the members of Council at a meeting of Council shall be required before the Youth Ombudsperson can be removed.

Proposed Effective Date

This legislation would be effective upon certification of the election at which the amendments were approved.

Fiscal Impact Analysis

Fiscal Year 2026 would have no fiscal impact due to the ballot question being proposed in the May 2026 primary election, so any budget impact would begin in Fiscal Year 2027. A required minimum budget for a City office creates constraints on the General Fund preventing flexibility and increasing fixed costs. The estimated fiscal impact of this legislation is reflected in the following table. However, final determinations of the Office's budget and costs will be determined during the annual budget process. The total cost is estimated to be $2.9 million to $3.1 million over five years.

Fiscal Impact Summary	FY26	FY27	FY28	FY29	FY30	Total
Expenditure Increase/(Decrease) Class 100: Personal Services	-	$444,000-$464,000	$444,000-$464,000	$444,000-$464,000	$444,000-$464,000	**$1,776,000-$1,856,000**
Fringe Benefits	-	$188,700-$197,200	$188,700-$197,200	$188,700-$197,200	$188,700-$197,200	**$754,800-$788,800**
Expenditure Increase/(Decrease) Class 200: Purchase of Services	-	$34,000	$34,000	$34,000	$34,000	**$136,000**
Expenditure Increase/(Decrease) Class 300: Materials and Supplies	-	$16,000	$16,000	$16,000	$16,000	**$64,000**
Expenditure Increase/(Decrease) Class 400: Equipment	-	$186,250 - $190,250	$6,000-$10,000	$6,000-$10,000	$6,000-$10,000	**$204,250-$220,250**
Net Cost/(Savings)	**-**	**$868,950-$901,450**	**$688,700-$721,200**	**$688,700-$721,200**	**$688,700-$721,200**	**$2,935,050-$3,065,050**

*Changes in labor contracts are not reflected, but could result in higher overall costs.

The Office of the Youth Ombudsperson

The Office of the Youth Ombudsperson was established by executive order in 2022. The Office was tasked with promoting the safety and well-being of youth in residential placements. The Office was placed under the oversight of the Office of Inspector General (OIG), which provided funding for a large portion of their daily functions and tasks. The Office currently has a staff of five. This analysis only reflects the additional new hires and the minimum required salary of the Youth Ombudsperson. If enacted, the Office would become a permanent office under the Home Rule Charter.

Class 100: Personal Services

The Office of the Youth Ombudsperson anticipates hiring the following new exempt positions:

- two new Associate Youth Ombudspersons at a rate of $72,000 to $82,000 annually for each position,
- one Executive Assistant at the rate of $80,000 annually, and
- one Communications/Data Associate at a rate of $70,000 annually.

This bill would also establish a minimum salary for the Youth Ombudsperson of $150,000 annually.

Annual Salary Cost: $444,000 - $464,000

The Office of the Director of Finance:

The employee salaries for the Office of the Youth Ombudsperson would be funded through the Office of the Youth Ombudsperson's budget, but the associated fringe benefits for these positions would be included in the Citywide fringe line in the Office of the Director of Finance's budget.

Annual Fringe Benefit Cost: $188,700 - $197,200

Class 200: Purchase of Services

This bill would require the Office of the Youth Ombudsperson to maintain qualifications and certifications. Members of the team would be required to attend professional development opportunities, trainings and maintain memberships and certifications. Staff from the Office of the Youth Ombudsperson would also be required to travel across the Commonwealth of Pennsylvania to facilities to inspect building conditions and other safety concerns. Traveling would require traveling expenses such as, parking, tolls, gas, and in some instances hotel stays. The Office of the Youth Ombudsperson would also be required to purchase cell phones plans and other subscriptions for their staff.

Annual Purchase of Services Cost: $34,000

Class 300: Materials and Supplies

The Office of the Youth Ombudsperson would be required to purchase office supplies and materials.

Annual Materials and Supplies Cost: $16,000

Class 400: Equipment

Purchases under this class would include furniture and equipment such as computers, phones, and printers. Fiscal Year 2027 has a greater up-front cost than succeeding years, because it includes large one-time purchases of two vehicles and office equipment. The reoccurring costs in succeeding would be for maintenance and fuel of the vehicles.

Department of Fleet Services: The purchase of new vehicles for the Office of the Youth Ombudsperson would add additional costs and responsibilities for the Department of Fleet Services. Specifically, the Department estimates that each new vehicle would add $3,000 to $5,000 in costs related to each vehicle for fuel and maintenance. These new vehicles could impact the following classes in their budget:

- **Class 100: Personal Services** related to their labor and overtime budget.

- **Class 200: Purchase of Services** related to their repair and maintenance budget.
- **Class 300: Materials and Supplies** related to their vehicle parts and fuel budget.
- **Class 400: Equipment** acquisitions of two vehicles, each **$45,000**.

Equipment First Year Cost: $186,250 - $190,250

Equipment Recurring Cost: $6,000 - $10,000

Legislative History

2021

Resolution 210126 – Adopted

On February 11, 2021, Councilmember Gym introduced a resolution to authorize the Committee of Children and Youth to hold hearings regarding the establishment of an independent Youth Services Ombudsperson office. The Resolution was adopted the same day by Council. The hearing was held in April of 2021.

Prepared by: Policy and Fiscal Analyst Unit, Mayor's Office of Legislative Affairs
Date: 02/06/2026

This document is a summary of proposed legislation as introduced and is prepared by the Mayor's Office of Legislative Affairs for general information only. It does not represent the official legal position of the City. Estimates are calculated using the best information available. Actual costs and revenue impact incurred may vary from estimates.